



Wildfire Defense Insurance Services
580 Zoot Enterprises Lane
Bozeman MT 59718

Insured Name: Newco Foods, Inc.
Quote ID: SUB006742-01

PROPERTY-SPECIAL Policy Binder

Insured:

Newco Foods, Inc.

Bound Date:

02/27/2026

Policy Period:

03/01/2026 12:01 a.m. to 03/01/2027 12:01 a.m.

Previous Policy Number:

PROP-000162

Policy Term:

12 Months

Policy Number:

PROP-000162-01

Agency:

Insurance Office of America (AGT073)

Underwriter:

Garrett Trufant
g.trufant@wdisinc.com
CA# 4209238

Company:

Liberty SLIP - Underwriters at Lloyds of London
AM Best Rating: A+ (Superior)

Commission:

10 % of Premium

Minimum Earned Premium:

25%

Additional Insured(s):

This binder is being offered through a non-admitted company.

THIS BINDER IS ISSUED IN RELIANCE OF THE FACT THAT YOU OR YOUR CORRESPONDENT HAVE A SURPLUS LINES LICENSE IN THE HOME STATE OF THE POLICYHOLDER AS DEFINED BY THE NONADMITTED AND REINSURANCE REFORM ACT.

Based on the information provided we are pleased to offer the following proposal. The following outlines the coverage forms, limits of insurance & policy.

ENDORSEMENTS AND OTHER TERMS AND CONDITIONS ARE PROVIDED IN THIS QUOTATION. ANY POLICY COVERAGES, LIMITS OF INSURANCE, POLICY ENDORSEMENTS, COVERAGE SPECIFICATIONS, OR OTHER TERMS AND CONDITIONS THAT YOU HAVE REQUESTED THAT ARE NOT INCLUDED IN THIS QUOTATION HAVE NOT BEEN AGREED TO.

PLEASE REVIEW THIS QUOTATION CAREFULLY.



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Policy Totals	
Property Premium	\$ 15,750.00
Surplus Lines Taxes and Fees	\$ 500.85
Inspection and Policy Fees	
	WDIS Service Fee \$ 1,000.00
Premium Excluding TRIA	<u>\$ 17,250.85</u>
If TRIA is wanted, add additional premium of (including taxes and fees)	\$ 0.00
Total Premium Including TRIA	\$ 17,250.85



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Terms and Conditions

This binder is being offered subject to the following terms and conditions. The Company does not claim any responsibility for your failure to reconcile the original application with coverage bound herein. Failure to comply with the following conditions may result in cancellation.

- Cancellation/Non-Renewal Clause: Thirty (30) day notice of cancellation/non-renewal, except ten (10) days for non-payment of premium.
- Limit of Insurance is per occurrence unless otherwise stipulated, and per the Schedule on file with the Company.
- Exclusions: Asbestos, Mold/Fungus, Terrorism, Cyber, Pollution, Nuclear, Biological, Chemical, Virus, Boiler and Machinery.
- This binder is offered subject to the acquisition of a favorable inspection and compliance with all reasonable recommendations.
- A Per Occurrence Deductible will apply.
- Multiple Deductibles may apply, per the Schedule.
- Any location with Aluminum Wiring is excluded from coverage.
- 3 Years (or purchase/possession date if within 3 years) of loss runs dating up to and including our inception date. If purchased or possessed within 3 years, or if this is a NEW PURCHASE effective our inception date, please make a note of this in your reply. If loss runs are not available, we will accept a signed and dated loss/no loss statement from the Insured covering the equivalent time period. *This information needs to be provided prior to binding.*
- No Unreported Losses.
- All requested documents are due within 20 days of binding.
- No Cannabis manufacturing, growing, processing, mixing or related operations on the premises.
- Current color photos of at least TWO sides of the Building(s) listed on the Insured's property schedule. Web photos and faxes are not acceptable.
- Other Terms and Conditions:

- Ansul System is warranted on any risk with commercial cooking. Automatic Commercial Cooking Exhaust And Extinguishing System installed on cooking appliances and having the following components: a. Hood; b. Grease removal device; c. Duct system; and d. Wet chemical fire extinguishing equipment.

- Quarterly cleaning and maintenance required for Ansul System over commercial cooking equipment.

Water Damage Deductible

- If there is a lapse in coverage, a signed no known loss letter is required from the date of lapse in coverage through effective date.

- There is no use of, storage of, or presence of any Pyrotechnics at or within any covered building, covered location or around property. For purposes of the foregoing, entertainment purposes, fireworks, firecrackers, Catherine wheels and pin wheels, suns, pastilles, skyrockets, smoke devices and military flames, and all aerial or ground displays of such objects or devices.



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Protective Safeguards

- Protective Safeguards Endorsement - CP 04 11
 - "P-1" - Automatic Sprinkler System
 - "P-2" - Automatic Fire Alarm
 - "P-3" - Security Service
 - "P-4" - Service Contract with Privately Owned Fire Department
 - "P-5" - Automatic Commercial Cooking Exhaust and Extinguishing System
 - "P-9" - CCTV Surveillance

Loc No	Bldg No	Protective Safeguard
1	1	P-5 P-9

- Burglary and Robbery Protective Safeguards Endorsement - CP 12 11
 - "BR-1" - Automatic Burglar Alarm - Central Station
 - "BR-2" - Automatic Burglar Alarm - Local Alarm
 - "BR-3" - Security Service
 - "BR-4" - [Specify Protective System in schedule]

Loc No	Bldg No	Protective Safeguard
1	1	N/A

- Limitation on Coverage for Roof Surfacing Endorsement - CP 10 36
 - "Paragraph A" - ACV
 - "Paragraph B" - Cosmetic Damage to Roof Surfacing caused by Wind/Hail will not be Covered

Loc No	Bldg No	Protective Safeguard
1	1	Paragraph A



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Offer of Terrorism Coverage

In accordance with the Terrorism Risk Insurance Act, we are required to offer the insured coverage for losses resulting from an act of terrorism, not otherwise excluded by this policy and as covered by the Terrorism Risk Insurance Act. All other policy provisions will apply to coverage for such act of terrorism. The insured must choose whether or not to pay the premium described below under DISCLOSURE OF PREMIUM for coverage for acts of terrorism that are certified by the Secretary of the Treasury as covered acts under the Terrorism Risk Insurance Act, or not to pay the premium, and reject this offer of coverage at the time of binding.

In any case, if the insured rejects terrorism coverage in any scheduled underlying policy, this policy is written to exclude terrorism.

If the premium shown in the DISCLOSURE OF PREMIUM is not collected and the insured does not reject coverage for terrorism this policy will be issued excluding acts of terrorism.

DISCLOSURE OF PREMIUM

If you accept this offer, the portion of your premium for the policy term attributable to coverage for all acts of terrorism covered under this policy including terrorist acts certified under the Act is **Not Applicable**

DISCLOSURE OF FEDERAL PARTICIPATION IN PAYMENT OF TERRORISM LOSSES

The United States Government, Department of the Treasury, will pay a share of terrorism losses insured under the federal program. Under the formula, the United States Government generally reimburses 85% through 2015; 84% beginning on January 1, 2016; 83% beginning on January 1, 2017; 82% beginning on January 1, 2018; 81% beginning on January 1, 2019 and 80% beginning on January 1, 2020, of covered terrorism losses that exceed the applicable insurer retention. However, if aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year, the Treasury shall not make any payment for any portion of the amount of such losses that exceeds \$100 billion.

CAP INSURER PARTICIPATION IN PAYMENT OF TERRORISM LOSSES

If aggregate insured losses attributable to terrorist acts certified under the Terrorism Risk Insurance Act exceed \$100 billion in a calendar year and the Insurer has met our Insurer deductible under the Terrorism Risk Insurance Act, the Insurer will not be liable for the payment of any portion of the amount of such losses that exceeds \$100 billion, and in such case insured losses up to that amount are subject to pro rata allocation in accordance with procedures established by the Secretary of Treasury.



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This endorsement modifies insurance provided under the following:

Commercial Coverage Property Part

As described below, we will provide Wildfire Defense Service if it can be provided. There is no deductible for Wildfire Defense Service.

Wildfire Defense Service: We will pay a contracted wildfire defense service to defend Premises scheduled on the Declarations against the threat of wildfire when:

- a wildfire is within three miles of your property; or
- a civil authority initiates an evacuation order because of an approaching wildfire.

Enrollment: In consideration of the premium charged, you are automatically enrolled in the Wildfire Defense Service and agree to accept the Wildfire Defense Service. This endorsement constitutes your permission and authorization for the Wildfire Defense Service and its personnel to enter your property to provide fire mitigation and defense services. There is no guarantee that service will be provided in the event of a wildfire. Except as modified above, all other terms and conditions of the above-referenced coverage part remain unchanged.



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NOT 0007 04/2021

NOTICE – WILDFIRE DEFENSE SERVICE

THIS DOCUMENT IS NOT A PART OF YOUR POLICY AND DOES NOT REPLACE OR ALTER ANY POLICY PROVISION.

A Wildfire Program Defense Service Endorsement is included in your policy as an added benefit to policyholders at no additional cost.

If your property is threatened by an active wildfire, Wildfire Defense Systems (WDS) will attempt to go into the evacuation zone to help protect your property. If WDS accesses your property during a wildfire, they may leave a notice showing they've been there.

WDS will enter your property to provide wildfire mitigation and structural protection services. WDS will determine the most appropriate methods to mitigate fire loss to your property, which could include, but are not limited to, nondestructive measures such as brush removal, fuel source mitigation; closing of structure entryways, garage doors and windows, moving wood piles and debris away from your property, clearing gutters and roof debris and extinguishing and monitoring for hot spots to prevent flare-ups. Temporary sprinkler systems may be used to wet down the area around your property to reduce the chance of an ignition. In situations of extreme threat, WDS may apply fire protection products to the property including fire blocking gel and fire retardant. Fire blocking gel is designed to be applied to the property and surrounding vegetation to prevent the exterior of the property from igniting. This gel will be removed from structures after the wildfire threat passes. Ground applied fire retardant is designed for application on non-managed vegetation around a property to help prevent the encroachment of fire to the property. WDS will use their professional judgment and industry best practices to determine the necessity, extent, or nature of the services provided.

WDS is not a first responder service and is supplemental to all other public wildfire responders. Due to engine availability limitations and health and safety requirements, there may be instances when WDS will not be able to provide the services to your property, and there is no promise that services will be provided or will prevent damage.

The services provided by WDS may be discontinued by the Insurer at any time without further notice.



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Property Coverage Summary

Location Number: 1 - 5033 Kanan Road Agoura Hills, CA 91301

<u>Building</u>		<u>Year</u>	<u>Square</u>		<u>Smoke</u>	<u>Water</u>
<u>Number:</u>	<u>Construction Type:</u>	<u>Built:</u>	<u>Feet:</u>	<u>Deductible:</u>	<u>Damage</u>	<u>Damage</u>
1	Frame	1978	2,186	\$ 10,000	\$ 100,000	\$ 25,000
Bldg Desc: Jack in the Box						

Occupancy Description	Coverage Description	Exposure	Cause of Loss	Valuation	Coins %
Restaurant	Building	\$ 800,000	Special	RCV	80.00%
	Business/Personal Property	\$ 500,000	Special	RCV	80.00%
	Business Income	\$ 520,000	Special		1/6
	TIV	\$ 1,820,000			

Total Insurable Value: \$ 1,820,000

Policy Sub-Limit of Insurance: N/A

All Sub-Limits of Insurance are contained within the Limit of Insurance in any once occurrence, and are not in addition to the limit of insurance.

Policy Sub-Limit Deductible: N/A

If two or more deductibles apply to any covered loss or damage, the highest single deductible will apply in any one occurrence.

Schedule of Common Forms and Endorsements

LMA3102B (12/19)	Certificate - SLC-3 (COR) California
LSW1001 (08/94)	SEVERAL LIABILITY NOTICE
IL DS 00 (09/08)	Common Policy Declarations
LMA9191A (08/23)	LLOYD'S CCPA Privacy Policy
LMA9136B (09/23)	California Complaints Notice



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CN 02 (01/00)	Claim Notice - Sedgwick Claims Management Services, Inc
NOT 0007 (04/21)	Notice - Wildfire Defense Service
IL P 001 (01/04)	US Treasury Department's Office of Foreign Assets Control (OFAC) Advisory Notice
IL 01 04 (07/20)	California Changes
IL 00 17 (11/98)	Common Policy Conditions
CP 00 90 (07/88)	Commercial Property Conditions
PP 02 (01/00)	Primary Loss Limit Policy - Combination Endorsement
CP DS 00 (01/01)	Commercial Property Coverage Part Declarations Page
CP 00 10 (10/12)	Building and Personal Property Coverage Form
CP 00 30 (10/12)	Business Income (And Extra Expense) Coverage Form
CP 10 30 (09/17)	Cause of Loss - Special Form
MCL 01 (01/25)	Multiple Causes Of Loss Deductible Form
CP 12 18 (10/12)	Loss Payable Provisions
CP 10 36 (10/12)	Limitation on Coverage for Roof Surfacing
MAN Defense 01 (01/00)	Wildfire Defense Coverage
CP 04 11 (09/17)	Protective Safeguards
MEP 01 (01/00)	Minimum Earned Premium
CP 10 32 (08/08)	Water Exclusion Endorsement
MAN AL 01 (01/00)	Aluminum Wiring
LMA5019 (09/05)	Asbestos Endorsement
NMA2962 (02/03)	Biological Or Chemical Materials Exclusion
LMA5393 (03/20)	Communicable Disease Endorsement
LMA5018 (09/05)	Microorganism Exclusion (Absolute)
LMA5401 (11/19)	Property Cyber And Data Exclusion
NMA1191 (07/59)	Radioactive Contamination Exclusion Clause -Physical Damage - Direct
LMA3100A (10/23)	Sanction Limitation And Exclusion Clause
LMA5021 (09/05)	Applicable Law (U.S.A.)
NMA2340 (11/88)	Seepage and Pollution Removal
NMA0464 (01/38)	War And Civil War Exclusion Clause
NMA2920 (08/01)	Terrorism Exclusion Endorsement
IL 02 70 (07/20)	California Changes Cancellation and Non-Renewal
LMA5020 (09/05)	Service of Suit (CA)
LMA3102B-BACK (12/19)	Certificate - SLC-3 (COR) California